

Bhim Singh v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 22 February 2010 · Writ-C No. 7320 of 2010 · **Writ disposed; EE to decide representation under cl. 6.5**

HEADNOTE

A consumer billed under LMV-1(a) and later charged under LMV-1(c) was relegated to Clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ was disposed of with a direction that a fresh comprehensive representation to the Executive Engineer, PVVNL, Baghpat, be considered and decided in accordance with law, preferably within three weeks.

FACTUAL SUMMARY

The petitioner, a consumer of Paschimanchal Vidyut Vitran Nigam Ltd. at Baghpat, was billed under tariff LMV-1(a). The Corporation later applied tariff LMV-1(c). He represented to the Superintending Engineer and then filed this writ. Counsel for the Corporation stated that a dispute of this kind is to be decided by the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection to Executive Engineer

HOLDING

A dispute over change of tariff from LMV-1(a) to LMV-1(c) is to be decided by the Executive Engineer under Clause 6.5. The writ was disposed of with a direction that if the consumer files a fresh comprehensive representation before the Executive Engineer, PVVNL, Power Supply Division, Baghpat, it shall be considered and decided in accordance with law, preferably within three weeks of filing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CHANGE OF TARIFF FROM LMV-1(A) TO LMV-1(C) WAS LAWFUL

¶ 1